IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No401

CP(CAA)/43(AHM)2022
in
CA(CAA)/18(AHM)2022

Proceedings under Section 230-232 Co.Act,2013

IN THE MATTER OF:

Positronics Control Systems Pvt Ltd **.....Applicant**
Positronics Pvt Ltd

.....Respondent

Order delivered on ..20/01/2023

Coram:

Dr.Deepti Mukesh, Hon'ble Member(J)
Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant : Mr. Nirav Trivedi, PCS
For the Respondent :

CLARIFICATION

Learned PCS for the company undertakes to clarify the queries raised by Bench, which are as follows.

1. RD's observation No. 2 for Proof of creation of charge as per the requirement of Section 77 of the Companies Act, 2013. Reply Page No. 25 Para VIII mentions of annexing with first motion?
2. The affidavit filed by the Chief Manager, BOB for NOC is not supported by the Stamp Paper.
3. The proof of payment of outstanding balance amount of Rs.1,28,798/-, against loan from ICICI that had to be paid by end of December 2022.

Learned PCS undertakes to submit all the relevant documents and explanation by way of an affidavit, within three days.

List on 25.01.2023.

-sd- -sd-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

DR. DEEPTI MUKESH
MEMBER (JUDICIAL)

Vinit